

4.	<i>Stradling, Yocca, Carlson & Rauth LLP vs. Avenir Wellness Solutions, Inc.</i> 2026-01572452	Before the court is the petition to confirm attorney-client fee arbitration award filed by petitioner Stradling, Yocca, Carlson and Rauth, LLP (Petitioner). As more fully set forth below, the hearing on this petition is CONTINUED TO THURSDAY, DECEMBER 3, 2026, AT 2:00 P.M. IN DEPARTMENT C23, for an amended petition to be filed and proper proof of service. By this petition, Petitioner seeks to confirm the arbitration award against respondent Avenir Wellness Solutions, Inc., fka Cure Pharmaceutical Holding Corp. (Respondent) that Hon. Kirk H. Nakamura (Ret.) issued from the parties' arbitration held on December 22, 2025. The award is dated April 14, 2026. Although the arbitration involved an attorney-client fee dispute arising from Petitioner's representation of Respondent in earlier litigation and Respondent's failure to pay Petitioner the agreed upon fees, the arbitration was conducted as a contractual arbitration not a mandatory fee arbitration under the Mandatory Fee Arbitration Act (Bus. & Prof. Code, § 6200, et seq.). In filing the petition, Petitioner used the Judicial Council Form Petition that is used to confirm arbitration awards that become binding pursuant to the terms of the Mandatory Fee Arbitration Act. Indeed, section 8 of the form requires the petition to check the box stating the grounds on which the award became binding—i.e., by subsequent agreement of the parties or because no party requested a trial de novo within 30 days. Moreover, arbitrations under Mandatory Fee Arbitration Act generally are conducted through a local bar association or the State Bar; they are not conducted through private arbitration providers like JAMS, which was the arbitration provider in this case. The arbitration award Judge Nakamura issued makes clear the arbitration was conducted pursuant to an agreement to arbitrate, not the Mandatory Fee Arbitration Act. At pages 1-2 of the award, under the heading "Jurisdiction," Judge Nakamura explains the arbitration was conducted pursuant to an agreement to arbitrate contained in the Engagement Letter. Code of Civil Procedure section 1285.4 sets forth the essential terms of a petition to confirm a contractual arbitration award as follows: "A petition under this chapter shall: [¶] (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have
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		attached a copy of the award and the written opinion of the arbitrators, if any.” Although Petitioner’s petition identifies the arbitrator and attaches a copy of his award, it does not set forth the substance or attach a copy of the agreement to arbitrate that Judge Nakamura identified as the basis for the arbitration award. Accordingly, the hearing is CONTINUED as stated above and Petitioner is ordered to forthwith file an amended petition, using Judicial Council Form ADR-106, entitled Petition Confirm Contractual Arbitration Award, and provide all information required to confirm a contractual arbitration award (as opposed to a fee arbitration award). Moreover, any petition to confirm an arbitration award and the notice of hearing on such petition must be served at least 10 days before the hearing. (Code Civ. Proc. § 1290.2.) Proof of such service must be filed with the court at least five court days before the hearing. (Cal. Rules Ct., rule 3.1300(c).) Code of Civil Procedure section 1290.4 states, “(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. [¶] (b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: (1) Service within this State shall be made in the manner provided by law for the service of summons in an action. . . . Here, both the petition and notice of this hearing were served by U.S. Mail. This is not sufficient service. (See Code Civ. Proc. §415.10, et. seq.) Accordingly, the hearing on the petition also is CONTINUED as stated above, and Petitioner is ordered to file a proof of service showing Respondent was timely served with a copy of the petition, the amended petition, and notice of hearing. The proof of service shall be filed at least 10 days prior to the new hearing. Counsel for Petitioner is ordered to give notice of this ruling.
5.	<i>UniFirst Corporation vs.</i>	Before the court is the continued hearing on the petition of petitioner Unifirst Corporation (Petitioner) to confirm contractual arbitration award in the amount of \$67,026.10